EXPLAINER

Indissolubility: what the Church can and cannot dissolve

The Church says it has no power to end a consummated marriage between two baptized people, and yet it does dissolve some marriages. This page explains why both things are true, and what that means for people living in the hard cases.

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What the Church teaches, and why

The canon is one sentence: a marriage that is ratified and consummated "can be dissolved by no human power and by no cause, except death" c. 1141. *Ratified* means a valid marriage between two baptized persons, which is by that fact a sacrament; *consummated* means the spouses have completed it in the conjugal act c. 1061 §1. When both are true, no one on earth, the Pope included, can undo the bond.

The canon does not make this teaching; it writes it down. The teaching comes from the Lord's own words, "what God has joined together, let no man put asunder" (Mt 19:6; Mk 10:9), and it has been taught at the highest level. The Council of Trent defined that the Church does not err when it teaches that the bond cannot be dissolved even for adultery (Session 24, canon 7). The Second Vatican Council taught that the intimate union of the spouses and the good of their children demand total fidelity and an unbreakable unity (*Gaudium et spes* 48). The Catechism says the bond "is established by God himself" and "can never be dissolved," and that the Church "does not have the power to contravene this disposition of divine wisdom" (CCC 1640).

Why? Every true marriage, even between the unbaptized, is by nature permanent: unity and indissolubility are its essential properties c. 1056. But a marriage between the baptized is also a sign. St Paul, quoting Genesis on the two becoming one flesh, calls it a great mystery that refers to Christ and the Church (Eph 5:31–32). Christ does not leave his Church. A sacrament that signifies that union cannot be made to say the opposite, and the Church, which is the bride in that sign, cannot cut what it did not tie. It is not a rule the Church keeps because it is strict; it is a limit the Church keeps because the limit is not hers to move.

Nullity is not dissolution

Two things that look alike are opposites in law. A **dissolution** ends a bond that existed. A **declaration of nullity** finds that a bond never came into being, because consent was defective, a party was impeded, or

the form was lacking on the wedding day. Nullity asks about the past; dissolution acts in the present. The Church declares many marriages null every year and dissolves nothing when it does. I explain that process in Marriage nullity, explained.

What the Church does dissolve, and why it is not a contradiction

Canon 1141 names two conditions: both baptized, and consummated. Every dissolution the Church recognises lacks one of them. The exceptions are not holes in the teaching; they are places the teaching never reached.

- **A marriage not consummated.** Between two baptized persons, or between a baptized and an unbaptized person, the Pope can dissolve it for a just cause, at the request of one or both spouses c. 1142. Such a marriage is valid and, between the baptized, sacramental, but the sign is not yet completed in the one-flesh union. The process is administrative and goes to Rome through the diocesan bishop cc. 1697–1706.
- **The Pauline privilege.** Two unbaptized persons marry; one is later baptized; the unbaptized spouse departs, or will not live in peace without offence to the Creator. The baptized spouse may marry again, and at that moment the first bond is dissolved by the law itself, in favour of the faith cc. 1143–1147; St Paul gave the rule (1 Cor 7:12–15). The departing spouse must ordinarily be asked first whether they too wish to be baptized or at least to live in peace c. 1144. Related canons cover converts from polygamy and spouses separated by persecution cc. 1148–1149.
- **Dissolution in favour of the faith**, sometimes called the Petrine privilege. Where one party was never baptized, so the marriage was never a sacrament, the Pope may dissolve it for the good of someone's faith, even after consummation. It is not in the Code; the norms are those of the then Congregation for the Doctrine of the Faith, *Potestas Ecclesiae* (2001). It is reserved to the Pope personally, granted as a favour and not a right, and ordinarily refused where the petitioner was the main culpable cause of the breakdown.

Notice what every one of these has in common: none reaches a consummated marriage between two baptized persons. Even where the law favours the faith in a doubtful case c. 1150, nothing touches the sacramental, consummated bond. That is why a Catholic whose first marriage was a sacrament and was consummated has, in the Church's eyes, exactly one route to a new marriage in the Church: a declaration that the first was null.

In practice: a dissolution is a favour sought from the Holy See, not a right. It takes a careful instruction of the case in the diocese, proof of non-consummation or of non-baptism, and a just cause. A canonist can tell you fairly quickly whether your situation fits one of these doors, and if not, whether a nullity case is the honest route.

The hard situations

Divorced and civilly remarried

The Church holds that a person still bound by a sacramental marriage who has entered a civil union with someone else lives in a situation that objectively contradicts the sign of the Eucharist, and so, as a rule, does not receive Communion (CCC 1650). The law says that those "obstinately persevering in manifest grave sin" are not to be admitted c. 915, and the Church has applied that canon here. St John Paul II taught that the divorced and remarried remain members of the Church, are to be welcomed and helped, and may be admitted to the sacraments where they undertake to live in continence (*Familiaris consortio* 84). Benedict XVI repeated this (*Sacramentum caritatis* 29).

Pope Francis, in chapter 8 of *Amoris laetitia* (2016), asked pastors to accompany such couples in discerning their actual responsibility, since circumstances can lessen culpability (AL 301–305), and in two footnotes (336 and 351) spoke of the help of the sacraments "in certain cases." The bishops of the Buenos Aires region wrote guidelines allowing, after discernment, access to the sacraments in some such cases; the Pope wrote that there was "no other interpretation," and the exchange was later placed in the official acts of the Holy See. Other bishops, including in Canada and the United States, have kept closer to the earlier practice. Theologians disagree about how far *Amoris laetitia* changes the discipline, and about how a conscience formed in the internal forum relates to a rule applied in the external one.

I will not pretend that is simpler than it is. What is not in dispute is the bond: no document in this discussion claims the first marriage has ended. What is being worked out is how the Church accompanies people whose first marriage has not ended and whose second union is where their children live. If that is your situation, your parish priest and your bishop's guidelines are where that conversation happens, and a canonist can at least tell you whether the first marriage might be open to a nullity case.

Separation while the bond remains

Indissolubility does not mean a spouse must stay in a dangerous home. The law obliges spouses to common life but recognises legitimate causes for leaving c. 1151: adultery c. 1152, and grave danger of soul or body to the other spouse or the children, or conduct that makes life together too hard c. 1153. The spouse who leaves for such a cause does nothing wrong (CCC 1649). A civil divorce sought to protect children, property or legal rights can be tolerated in such cases (CCC 2383). What the law does not do is treat the bond as ended: a separated Catholic remains married and is not free to marry again c. 1085, though they may receive the sacraments, and the law provides for a return to common life c. 1155.

The Orthodox practice

The Orthodox Churches hold marriage to be indissoluble in principle and nonetheless permit a second, penitential marriage after an ecclesiastical divorce, by *oikonomia*: the pastoral relaxation of a rule for the

salvation of a person. It should not be caricatured; it rests on a reading of Matthew 19:9 and of the Fathers that the East has held for a very long time. But the Catholic Church does not adopt it, and the reason is a matter of kind, not of strictness. For the Catholic Church the indissolubility of a consummated sacramental marriage is divine law, not a rule the Church made and can relax; *oikonomia* can bend what the Church made, not what God made. Trent worded its canon with the Greeks in mind, condemning those who say the Church errs rather than anathematizing the Eastern practice by name, and theologians still discuss what that careful wording leaves open for dialogue. The Eastern Catholic Churches teach the same as canon 1141 in their own Code (CCEO c. 853).

Why this is good news as well as hard news

A bond no human power can break is a hard teaching when a marriage has died. It is also the only kind of promise worth making at a wedding. The same teaching that forbids the Church to dissolve a true marriage forbids anyone, including a tribunal, from pretending one away; it is the reason a declaration of nullity, when given, can be trusted. More on how law and teaching fit together in Canon law and theology and Sacraments and the law. None of this is advice on a particular situation. If yours is one of the hard ones, I would rather you asked than guessed.

KEY CANONS

- **c. 1056** Unity and indissolubility are essential properties of every marriage.
- **c. 1061** Ratified; ratified and consummated.
- **c. 1141** No human power, no cause except death.
- **c. 1142** Non-consummated marriage: the Pope, for a just cause.
- **cc. 1143–1150** The Pauline privilege and the favour of the faith.
- **cc. 1151–1155** Separation while the bond remains.
- **c. 915** Admission to Communion.
- **CCEO c. 853** The same teaching in the Eastern Code.

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